

TENTATIVE RULING

Case: **De La Cruz v. Del Monte Capitol Meat Company, LLC**
Case No. CV2025-1527

Hearing Date: **May 14, 2026** **Department Eleven** **9:00 a.m.**

Del Monte Capitol Meat Company LLC's motion to stay all proceedings pending resolution of appeal is **GRANTED**. (Code Civ. Proc., § 1294, subd. (a).) The Court finds that interests of justice and judicial efficiency are best served by staying all proceedings pending appeal. (See *OTO, LLC v. Kho* (2019) 8 Cal.5th 111, 141; *Freiberg v. City of Mission Viejo* (1995) 33 Cal.App.4th 1484, 1489; see also *Alpha Media Resort Inv. Cases* (2019) 39 Cal.App.5th 1121, 1134 n.10.)

The case management conference, set for June 30, 2026, is **VACATED**. The Court sets a status conference for **November 16, 2026**.

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: FTNT Holding, LLC v. Khan
Case No. CV2025-1747

Hearing Date: May 14, 2026 **Department Eleven** **9:00 a.m.**

Motion for leave:

Cross-defendants Qassam Tariq, Naila Tariq, Azam Mirza, Faiza Tariq, and FTNT Holding, LLC’S request for judicial notice is **DENIED**. (Evid. Code, §§ 452, 453.) The documents are irrelevant to the Court’s determination of the motion. (*Malek Media Group LLC v. AXQG Corp.* (2020) 58 Cal.App.5th 817, 825 [“Any matter to be judicially noticed must be relevant to a material issue”].)

Defendant/cross-complainant Zahra Khan’s motion for leave to file proposed second amended cross-complaint is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., §§ 473, 576; Cal. Rules of Court, rule 3.1324.) First, cross-complainant has not stated what allegations are proposed to be added and/or deleted and where, by paragraph and line number. (Cal. Rules of Court, rule 3.1324(a)(2)-(3).) Second, cross-complainant’s supporting declaration does not specify: “(3) When the facts giving rise to the amended allegations were discovered; and (4) The reasons why the request for amendment was not made earlier.” (Cal. Rules of Court, rule 3.1324(b); see Khan decl.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Motion to strike:

Cross-defendants Qassam Tariq, Naila Tariq, Azam Mirza, Faiza Tariq, and FTNT Holding, LLC’s unopposed motion to strike first amended cross-complaint or portions thereof is **DENIED WITHOUT PREJUDICE**. (Code Civ. Proc., § 435 et seq.) On March 20, 2026, cross-defendants filed a proof of service, indicating that cross-complainant was timely served by electronic service. (Code Civ. Proc., §§ 1005, subd. (b), 1010.6, subd. (a)(3)(B).) However, cross-complainant is not represented by an attorney, and the Court’s file does not indicate that she provided express consent to receive electronic service. (Code Civ. Proc., § 1010.6, subd. (c); Cal. Rules of Court, rule 2.251(b) & (c); YCR 7.2.) Therefore, unless cross-defendants can establish that cross-complainant provided express consent to electronic service, cross-complainant must be served conventionally. (Code Civ. Proc., § 1010.6, subd. (c)(3)(ii); Cal. Rules of Court, rule 2.251(b).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.